

Anil Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 May 2019 · Writ-C No. 15772 of 2019 · **Writ dismissed; petitioner relegated to objections under Clauses 6.8/8.1.**

HEADNOTE

A consumer aggrieved by a provisional assessment must file objections and have the assessment finalized under Clause 6.8/8.1 of the U.P. Electricity Supply Code, 2005. That statutory course is an alternative remedy; the High Court will not exercise extraordinary writ jurisdiction to examine the assessment. The writ petition was dismissed.

FACTUAL SUMMARY

Anil Kumar invoked the Allahabad High Court's writ jurisdiction against the State of Uttar Pradesh and Dakshinanchal Vidyut Vitaran Nigam Ltd. He was aggrieved by a provisional assessment dated 23 January 2019 issued by the Executive Engineer, Electricity Distribution Division, Mainpuri. Counsel for the petitioner and for the respondents were heard. The Division Bench considered whether the writ should be entertained in the face of the Supply Code procedure for objecting to a provisional assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

provisional-assessment-alternative-remedy

HOLDING

A petitioner aggrieved by a provisional assessment may file objections and have the assessment finalized under Clause 6.8/8.1 of the U.P. Electricity Supply Code, 2005; that statutory course is an alternative remedy, and the High Court will not exercise extraordinary writ jurisdiction. ¶ 1

FLAG Order cites Clause 6.8/8.1 together without identifying whether the assessment was for unauthorized use or theft.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 23 JANUARY 2019 PROVISIONAL ASSESSMENT

Merits of the assessment were not examined; the petitioner was left to objections and finalization under Clause 6.8/8.1. ¶ 1